

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 641

BY COMMERCE AND HUMAN RESOURCES COMMITTEE

AN ACT

RELATING TO EMPLOYMENT CONTRACTS; AMENDING CHAPTER 9, TITLE 44, IDAHO CODE,
BY THE ADDITION OF A NEW SECTION 44-906, IDAHO CODE, TO SPECIFY CERTAIN
REQUIREMENTS REGARDING THE USE OF EARNED SICK LEAVE; AND DECLARING AN
EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 9, Title 44, Idaho Code, be, and the same is
hereby amended by the addition thereto of a NEW SECTION, to be known and des-
ignated as Section 44-906, Idaho Code, and to read as follows:

44-906. USE OF EARNED SICK LEAVE. (1) For the purposes of this section:
(a) "Sick leave" means accrued increments of compensated or uncompen-
sated leave provided by an employer to an employee as a benefit of em-
ployment for use by the employee for absences from work for any reason
related to physical or mental illness or injury of the employee or the
employee's dependent that are permissible under the employer's written
policy.
(b) "Sick leave" does not include any benefit provided under an em-
ployee welfare benefit plan subject to the federal employee retirement
income security act of 1974, any insurance benefit, worker's compensa-
tion benefit, short-term or long-term disability benefit, or any other
flexible or paid time off benefit that can be used for reasons not exclu-
sively related to illness or injury.
(2) It shall be unlawful for an employer that offers sick leave to its
employees to count sick leave taken in accordance with the employer's writ-
ten policy as an absence that may lead to or result in discipline or any other
adverse employment action.
(3) Nothing in this section shall be construed as:
(a) Requiring an employer to offer paid or unpaid sick leave to its em-
ployees;
(b) Permitting absenteeism, sick leave fraud, or any other misconduct
related to the reasonable use of sick leave per the employer's policy;
or
(c) Requiring financial or other reimbursement to an employee from an
employer upon the employee's termination, resignation, retirement, or
other separation from employment for earned or accrued sick leave that
has not been used.
(4) An employer may require verification of an employee's need for sick
leave by a physician or other authorized health care practitioner identified
by the employer's written policy.
(a) A verification required by an employer pursuant to this subsection
shall strictly pertain to an employee's ability to work and the number

1 of days of sick leave needed. Employers shall not require or request
2 disclosure of diagnoses from employees or health care providers.

3 (b) Employers shall comply with applicable provisions of the federal
4 family and medical leave act and the federal Americans with disabili-
5 ties act.

6 SECTION 2. An emergency existing therefor, which emergency is hereby
7 declared to exist, this act shall be in full force and effect on and after
8 July 1, 2026.